

25STCV19831 25STCV19831

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Case Number: 25STCV19831 Hearing Date: September 17, 2026 Dept: 732

Mark Lind, et al.. v. FCA US, LLC, et al.

Thursday, September 17, 2026

CASE NUMBER: 25STCV19831

OPPOSED

Defendant FCA US, LLC's

Demurrer to the First Amended Complaint

Facts:

This is a lemon law action. The First Amended Complaint ("FAC") alleges as follows. Plaintiffs Mark Lind and Heather Lind ("Plaintiffs") purchased a certified pre-owned 2017 Chrysler Pacifica in December 2019, with express written warranties. (Complaint ¶¶ 7–12.) The vehicle contained or developed defects which the manufacturer has been unable to remedy within a reasonable time. (Complaint ¶ 76.)

Procedural History: Plaintiffs

filed the original Complaint on June 30, 2025, and filed the FAC on November 24, 2026, alleging six causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Negligent Repair

6.

Fraudulent Concealment

Defendant

FCA US, LLC filed the present demurrer on December 30, 2025.

Plaintiff

filed an opposition on August 13, 2026.

Defendant

filed a reply on September 10, 2026.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See *id.* § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Id.* at

p. 318; see also *Hahn v. Mirda*

(2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.

[Citation.]”)

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer

for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v.*

Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, *supra*, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

A.

STATUTE OF LIMITATIONS

Defendant FCA US,

LLC (“Defendant”) argues that the first through fourth causes of action under the Song Beverly Act and the sixth cause of action for fraudulent concealment are time-barred. (Demurrer at pp. 10–14.)

Code of Civil

Procedure § 871.21 states as follows: “n action covered by Section 871.20 shall

not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc. § 871.21, subd. (b).) Section 871.20 covers actions brought against manufacturers who have opted into certain lemon law litigation procedures, as Defendant has done here. (Code Civ. Proc. § 871.20, subd. (a).

Under this statute

of repose, Plaintiffs Mark Lind and Heather Linds’ (“Plaintiffs”) first through third causes of action for breach of express warranty covered by Code of Civil Procedure § 871.20, subd. (a), would be time barred within six years of the alleged December 20, 2019, purchase of the subject vehicle, i.e. if not brought by December 20, 2025. (FAC ¶ 7.) Fortunately for Plaintiffs, they filed their Complaint on June 30, 2025, well within this statute of repose.

Defendant’s

argument relies upon the 2017 model year of the vehicle, rather than the alleged delivery in December 2019, as required by Code of Civil Procedure § 871.21, subd. (b).) Although Defendant argues that the statute of repose may only run from the date a new motor vehicle is first purchased by any consumer, this argument is unsupported. (Reply at p. 1.) The statute of repose under Code of Civil Procedure § 871.21 applies to Song Beverly actions against manufacturers for refund or replacement of a motor vehicle. (Code Civ. Proc. § 871.20, subd. (a).) These provisions generally apply to new motor vehicles, which definition generally does not apply to used vehicles “unless the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.) But here, Plaintiff alleges that the vehicle at issue was a certified pre-owned vehicle with a special warranty issued by the manufacturer with its re-sale to Plaintiffs. (FAC ¶ 12.) Such direct involvement in the resale of a vehicle has been held to render the manufacturer subject to Song Beverly remedies for new motor vehicles. (See Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340.) There is thus no reason to believe that the “date of original delivery” identified in Code of Civil Procedure § 871.21 applies only to the first purchaser of a new motor vehicle, and not vehicles pursuant to which the manufacturer issues a new warranty with its sale.

However, the fourth

cause of action for breach of the implied warranty of merchantability is time-barred. The statute of repose articulated in Code of Civil Procedure § 87121 applies to claims subject to Code of Civil Procedure § 871.20, which

applies “where the request for restitution or replacement is based on noncompliance with the applicable express warranty. (Code Civ. Proc., § 871.20, subd. (a).) The claim for breach of implied warranty is thus beyond the bounds of the statute of repose.

The statute of limitations for breach of warranties under Commercial Code § 2725 is four years after accrual. (Com. Code § 2725, subd. (a).) There is a delayed discovery exception, but the language of the discovery exception is that a cause accrues upon delivery of the good, “except that where a warranty explicitly extends to future performance of the goods.” (Com. Code § 2725, subd. (2), *italics added*.) An implied warranty by definition cannot “explicitly extend[] to future performance of the goods,” because an implied warranty contains no explicit terms. Courts have accordingly held that “the exception must be narrowly construed, and that it applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time.” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 130.) “Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods.’” (Id. at p. 134.)

Thus the fourth cause of action was time-barred within four years of delivery of the vehicle in December 2019, and was time-barred before the original Complaint was filed in June 2025. The demurrer is therefore SUSTAINED without leave to amend to the fourth cause of action for breach of implied warranty.

The sixth cause of action for fraud, however, is not time-barred. There is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).) Plaintiff’s fraud claim would be barred, absent application of the discovery rule or some other equitable tolling doctrine, by December 20, 2022.

“Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.) The “discovery rule. . . postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of

action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807.) “A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’” (Ibid.) Courts “look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.” (Ibid.) The accrual of a cause of action in relation to the discovery rule is normally a question of fact. (Id. at p. 810.)

On a demurrer, the court must take as true statements such as that as plaintiff “did not discover, nor suspect, nor was there any means through which her reasonable diligence would have revealed, or through which she would have suspected,” the cause of an injury was the defendant in question. (Fox, supra, 35 Cal.4th at p. 811.) However: “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Id. at p. 808.) The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer. (Ibid.)

Plaintiffs here plead facts sufficient to invoke the delayed discovery rule on their fraud claim. Plaintiffs’ fraud claim concerns an alleged defect in the transmission. (FAC ¶ 96.) Plaintiffs allege various repair visits within the warranty period to investigate various transmission-related defects in the vehicle occurring as late as 2024 and 2025, after which it is alleged that Defendant’s representatives told Plaintiffs that the defects had been repaired. (FAC ¶¶ 18–21.) Accordingly, the fraud claim is not subject to demurrer on statute of limitations grounds.

B.
FRAUD

Defendant demurs to the sixth cause of action for fraudulent concealment on the grounds that the claim is pleaded in a conclusory manner, fails to allege a transactional relationship with the relevant defendants, and is barred by the economic loss rule. (Demurrer at pp. 14–22.)

“The required elements for fraudulent concealment are (1)

concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]' [Citation.]" (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.)

Fraud causes of action must be pleaded with particularity, meaning that the plaintiff must allege "how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) The specificity standard is less stringent "when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.'" (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 217, superseded by statute on other grounds as stated in Californians for Disability Rights v. Mervyn's, LLC (2006) 39 Cal.4th 223, 227, quoting Bradley v. Hartford Acc. & Indem. Co. (1973) 30 Cal.App.3d 818, 825.)

Here, Defendants argue that the fraud cause of action is not pled with sufficient specificity because Plaintiff failed to name the persons who made the alleged representations and what misrepresentations they made. (Demurrer at pp. 15–16.) But while there is authority for the proposition that fraud claims against a corporation must identify the individuals who made the representations and their position in the company (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157), Plaintiff's claim is in the nature of a concealment claim, in which it would be impracticable to allege the negative fact of the identity of the persons who did not disclose the defect.

Although Defendant argues that Plaintiff fails to plead the content of the alleged facts not disclosed (Demurrer at pp. 15–16), the FAC alleges that Defendant did not disclose that the vehicle's transmission "suffered from an inherent defect, was defective, would fail prematurely, and was not suitable for its intended use." (FAC ¶ 97.) The nature of this defect is alleged to be that it "cause[s] hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking. It can also result in a total loss of power and/or failure to accelerate while driving, significantly impair driver control." (FAC

¶ 96.) Thus the content of the alleged defect is alleged.

Defendant argues that there was no transactional relationship between the manufacturer and Plaintiffs such that Defendants owed a duty to disclose the alleged defect. (Demurrer at pp. 16–18; see *Bigler-Engler v. Breg, Inc.*

(2017) 7 Cal.App.5th 276, 312 [transaction giving rise to duty to disclose “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”].) But such a relationship exists here. Although Plaintiffs do not allege that they purchased their vehicle from Defendant, it was Defendant that provided them with the warranty that they are here alleged to have breached. (FAC ¶¶ 7, 11–12.) Thus a transactional relationship is alleged.

Defendant argues that Plaintiff does not allege a duty to disclose arising from Defendant’s exclusive knowledge of the defect. (Demurrer at pp. 18–19.) But is alleged that Defendant knew of this defect prior to Plaintiffs’ purchase of the vehicle through nonpublic information sources available only to itself, such as testing data, repair orders, and consumer complaints, thus satisfying the requirement that Plaintiff allege a duty to disclose through Defendant’s exclusive knowledge of the defect. (FAC ¶ 98a; *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651 [identifying “exclusive knowledge” as a basis for the duty to disclose].) And it is alleged that Plaintiffs would not have purchased the vehicle had the defects been disclosed to them. (FAC ¶¶ 101–102.)

Defendant finally argues that the fraud claim is barred by the economic loss rule, as Plaintiffs have alleged only economic losses arising from the failure of their warranty contract, and thus cannot recover in tort. (Demurrer at pp. 21–22.) Defendant neglects that “tort damages have been permitted in contract cases . . . where the contract was fraudulently induced.” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 990.) As Plaintiff alleges that the purchase of the vehicle was the product of fraudulent concealment, the economic loss rule does not apply.

The demurrer is therefore SUSTAINED without leave to amend as to the fourth cause of action for breach of implied warranty of merchantability, and OVERRULED as to the remaining causes of action.

Superior Court of California

County of Los Angeles

Department 732

MARK

LIND, et al.,

Plaintiffs

v.

FCA US, LLC et al.,

Defendants.

Case No.:

25STCV19831

Hearing Date: September 17, 2026

[TENTATIVE] RULING RE:

Defendant

FCA US, LLC's Demurrer to the First Amended Complaint

Defendant

FCA US, LLC's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the fourth cause of action for breach of the implied warranty of merchantability, and is otherwise OVERRULED.

Defendant to give notice.

Dated: September 17, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court